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March 3, 2021

Ms. Jessica Kowal, Planner II
Pasco County Development Review
8731 Citizens Drive, Suite 230
New Port Richey, FL 34654

Re: Meadow Pointe MPUD/DO Amendments (DRI #211))
REZONE-2020-00093/2020-00094
Response to Comments

Dear Ms. Kowal,

We are providing the response submittal for the project listed above based on comments from the following:

DEPARTMENT	Reviewer	Comment review date
Zoning & Site	Jessica Kowal	1-27.2021
PC Long Range		No comments
P&D Technical Review		No comments
PC Access Management		No comments
Utilities		No comments
Parks & Rec		No Comments
Public Works		No Comments
Fire Services		No Comments
Tampa Bay Water		No Comments
FFWCC		No Comments

Following is our response to departments requiring a resubmittal:

Jessica Kowal, Zoning & Site Review	
Response	Applicant Response
a. The submitted Narrative notes the request to amend the MPUD to allow for the conversion of retail entitlements to Multi-Family units (294) within Phase 2. Please provide proposed LUEM.	The Proposed Conversion was uploaded with the original submittal. Attached and included is another copy.
b. When will a new annual report be provided to the county.	Annual Reports are no longer required to be submitted pursuant to Florida Statute. The Final Report for this DRI was the 2018-2019 term. Attached and included is another copy.
c. Original RZ petition (RZ1505) notes residential density	Based on the last DRI annual report for

ranging from 3-4.5 du/a for single family and 9-12 du/acre for multi-family. With applying the maximum density of 12 du/acre the 9.28 acre parcel would be limited to 111 dwelling units. -	2018/2019, the actual number of residential lots is 3848 lots. The current zoning allows a total of 4500 residential units. Other than Tract 2, no other new residential areas are proposed. The proposed 294 units proposed for Tract 2 does not exceed the total allowed 4500 units.
d. The Concept Plan notes (Note #2) the apartment's park space requirement is being provided "within the existing nearby neighborhood park as shown on the MPUD Plan" however this area was not considered residential when the MPUD plan was approved. The applicant will need to demonstrate how this park is sufficient for meeting the park requirements and/or needs to include (plan for) accommodating park requirements on site. Please refer to LDC 905.1.F.2, Uses Prohibited, regarding what is not permitted to be included in the park acreage calculations. This will need to be vetted & approved by Parks & Rec.	We will discuss the current use and capacity of the existing park with the CDD and will modify our plans.
e. The Concept Plan also notes (Note#3) shared parking agreements/cross access agreements will be provided at time of Construction Plan review/approval – this can be noted as a COA for the MPUD modification.	Noted. It is conceptual in nature and the Applicant will be required to comply with the parking and/or cross access requirements of the LDC unless otherwise approved.
f. The Concept Plan does not appear to accommodate for the existing easements on the site – this will need addressed at time of site plan review.	Noted.
g. The Concept Plan notes "(Proposed) Parcel 1," "Not Included," and "(Proposed) Parcel 3 moving from south to north of the intersection of Bruce B Downs & Aronwood Blvd. The parcel noted as "Not Included" had a previous approval for 12,000 SF of retail and appears to be included in the calculations for exchanging entitlements from retail to multi-family. – *Please clarify*. A letter dated April 9, 2013 notes 15,000 SF of commercial entitlements being assigned to Bay Street Ventures, Inc. for Parcel 2 of Meadow Pointe Commercial Tract 2 of 15,000 SF of commercial uses on Parcel 2 – *Please clarify*. Letter of Entitlement.pdf	This amendment does not include Parcel 2 within Tract 2. It includes Parcel 4 in Tract 2. Based on the last DRI annual report for 2018/2019, the actual number of residential lots is 3848 lots. The current zoning allows a total of 4500 residential units. Other than Tract 2, no other new residential areas are proposed. The proposed 294 units proposed for Tract 2 does not exceed the total allowed 4500 units. A copy of the recorded entitlement purchase agreement is attached. There are no current known plans. Noted that amendments may precipitate the need for plan and/or plat

In addition, what are the plans for the entitlements for the proposed Parcels 1 & 3 (remaining entitlements)? (Plat Book 68 Page 99: October 25, 2013 – if changes to the plat are made revisions may be required. In addition, easements shown on the plat shall be shown on plans or properly vacated & documentation provide to PDD.)	amendments.
h. The school concurrency will be required at time of site plan review. Applicant should verify with School Board	This is a vested DRI.
i. The submitted "MPUD plan June 2020**"** a. Please revise the note regarding the existing park, as applicable, depending upon the outcome of the park's comments noted above. b. The adopted plan notes Fee-Simple Multi-Family development standards rather than the type of multi-family project that appears to be proposed with this project. Please clarify/verify and add note to the plans pertaining to the MF development standards (perhaps in accordance with a Multiple Family District.	A copy of the revised Concept Plan is attached.
j. Once hearing dates for the rezoning petition have been set, the applicant will need to demonstrate compliance with LDC 304, Public Notice Requirements & 306, Neighborhood Notice	Noted.
k. DO Amendment document reference Beacon Woods DRI rather than Meadow Pointe – Please revise - Page 3 of 9: Item #3 notes Beacon Woods DRI & S-T-R for the same – Please revise to refer to Meadow Pointe DRI & corresponding S-T-R. - Accela record notes PIN: 31-26-20-0230-00000-0040 yet it appears all of Tract 2 is being proposed for the MF use. Please ensure all PINs involved with the proposal are noted (appears to also include: 31-26-20-0230-00000-0010 & 31-26-20-0230-00000-0030). - Item #5 references the build-out extension date of March 13,2022 according to the DRI (#211) yet the DRI notes build-out date of March 13, 2019 and an expiration date of March 13, 2022. Please revise. - Page 4 of 9 notes Beacon Woods again – Please revise	Revised. Revised. All of Tract 2 is not being proposed for MF. This amendment applies to Parcel 4 in Tract 2. The PINs involved are the ones that were loaded and are included again. The build out date and DO expiration date for this DRI have not expired. The Development Order does not expire until 3/1/2040 and no downsizing in density or intensity can occur for this DRI before such time. The DRI has utilized various extensions over the years extending the DRI dates. The build out date for this DRI will be for

- Item #7 notes there is no change to the build-out date, yet it appears that date has already passed (March 13, 2019) – unless extension have been applied for it appears this statement's response will need to be modified. The DO Expiration date is March 13, 2022. - Item #9 notes a "Revised General Development Plan (Map H)" as Exhibit B however this is noted as Exhibit D in other areas. *Please revise*. - Item #10 notes the proposed Development Order Amendment as Exhibit C, yet no such exhibit was attached. *Please provide*. - Item #10.A speaks to the build-out date again but is referencing the expiration date rather than build-out date. *Please revise*.	the term of the current pandemic and for 6 months thereafter pursuant to Florida Statute. Please see above. A concept plan (revised) is included with this submittal. The current Map H for this DRI was included in the original submittal and a copy is attached again with this response. The Applicant is not proposing any revisions to Map H. Please see above regarding dates.
This item notes an enclosed Matrix – is this the provided "Entitlement Comparison…"? If not, no such Matrix was submitted. *Please provide*. - Items #10.C, #10.D & #10.E need revised regarding the build-out date.	The proposed conversion was submitted with the original application. A copy is attached and included again. Please see above regarding dates.
l. On March 18, 2019 county received DRI #211 – Meadow Pointe Annual Report for reporting period from November 21, 2017 to November 20, 2018. Exhibit A of the report identifies 3,848 residential lots constructed (3,709 homes constructed) on Parcels 1-18 of the development, 272,154 SF of commercial entitlements constructed on Tract 1, 17,800 SF of daycare entitlements constructed on Tract 8, and 30,180 SF of retail entitlements constructed on Tract 9 (totaling 320,134 SF of non-residential uses). The previous report received by the county on January 25, 2016 identified 3,999 residential lots constructed (3,701 homes constructed) on Parcels 1-18 of the development, 272,154 SF of commercial entitlements constructed on Tract 1, 17,800 SF of daycare entitlements constructed on Tract 8, and 30,180 SF of retail entitlements constructed on Tract 9 (totaling 320,134 SF of non-residential uses). This document notes Parcel 14 as "(Townhomes) 496" under number of lots and "(Townhomes) 196" under number of homes yet the subsequent document notes Parcel 14 as "(Townhomes) 345" under number of lots and	The Applicant is not the DRI developer and did not prepare the annual reports. This Amendment relates solely to Tract 2 Parcel 4. The Applicants number are in accordance with the last report filed and the current available entitlements. Based on the last DRI annual report for 2018/2019, the actual number of residential lots is 3848 lots. The current zoning allows a total of 4500 residential units. Other than Tract 2, no other new residential areas are proposed. The proposed 294 units proposed for Tract 2 does not exceed the total allowed 4500 units.

"(Townhomes) 206" under the number of homes. *Please explain the differences (*the top 3 of Exhibit A in the most recent report is blank when calling out the number of townhomes built in Parcel 14).*	This amendment relates to Parcel 4 within Tract 2. It does not involve Tract 9 and the applicant was not involved in the development of that site. It appears many of the questions relate to revised numbers from year to year on the DRI phasing table which would not be uncommon as things continue to be developed.
A more recent report for Meadow Pointe DRI #211 may clear up some of the confusion. Tract 6 (PINs: 31-26-20-0000-00100-0049, 31-26-20-0000-00100-0120 & 31-26-20-0000-00100-0050) was slated as Neighborhood Park (+/- 3 acres), Church Site or Day Care (+/- 3 acres). It appears all three uses are developed on the site, yet it is unclear where the church/day care entitlements are noted. The Property Appraiser's Office notes 31-26-20-0000-00100-0120 as church with 6,012 SF & 31-26-20-0000-00100-0050 as professional building for 7,142 SF) *Please clarify.* Tract 9 notes 30,180 SF of retail entitlements yet it appears plans totaling 32,180 SF were approved and the Property Appraiser's Office notes 32,381 SF. *Please clarify*. --	The Applicant is not the DRI developer and did not prepare the annual reports. This Amendment relates solely to Tract 2 Parcel 4. The Applicants number are in accordance with the last report filed and the current available entitlements. Based on the last DRI annual report for 2018/2019, the actual number of residential lots is 3848 lots. The current zoning allows a total of 4500 residential units. Other than Tract 2, no other new residential areas are proposed in this otherwise build out DRI. The proposed 294 units proposed for Tract 2 does not exceed the total allowed 4500 units. This amendment relates to Parcel 4 within Tract 2. It does not involve Tracts 6 or 9 and the applicant was not involved in the development of those sites. It appears many of the questions relate to revised numbers from year to year on the DRI phasing table which would not be uncommon as things continue to be developed. This amendment relates to Parcel 4 within Tract 2. The applicant was not involved in the development of the other various sites that are mentioned.
m. PIN: 31 26 20 0000 0010 0044 was approved for 12,000 SF commercial [more specifically 6,024 SF restaurant & 5,976 SF retail] (SDU05-120 Wesley Chapel Outback) & PIN 31 26 20 0230 00000 0040 was approved for 93,562 SF for retail/restaurant (2PR07-079 Wesley Chapel Outback Ph 2). (TOTAL 107,151 SF on Tract 2 – 4 lots). The submitted Meadow Pointe Tract 2 Entitlement Comparison notes different/conflicting information. *Please clarify*. The same comparison notes "Original	This Amendment relates solely to Tract 2 Parcel 2 The Applicants number are in accordance with the last report filed and the current available entitlements. Based on the last DRI annual report for 2018/2019, the actual number of residential lots is 3848 lots. The current zoning allows a total of 4500 residential units. Other than Tract 2, no other new residential areas are proposed in this otherwise build out DRI. The proposed 294 units proposed for Tract 2 does not exceed the total allowed 4500 units.

Declaration 1/23/06," "Approved by County 6/25/09," and "Approved by County 2015" yet it is unclear what these approvals are referring to (MPUD designation of entitlements, PDP plan approval, or the like?). *Please provide more information*. The "Approved by County 6/25/09" appears to most accurately reflect the previous plan approvals for this site (although expired). **The "Concept Plan" provided with the MPUD submittal notes PIN: 31 26 20 0000 0010 0044 as "Not Included" yet it appears some allocated entitlements for this parcel/lot were incorporated into the provided Entitlement Comparison (12,000 SF on Phase 1). Please revise to remove any allocated entitlements for this PIN from all submittal documents/calculations.	Yes the parcels within Tract 2 have had various site plan approvals over the years. This Amendment relates solely to Tract 2 Parcel 4 The Applicants numbers are in accordance with the last report filed and the current available entitlements. Based on the last DRI annual report for 2018/2019, the actual number of residential lots is 3848 lots. The current zoning allows a total of 4500 residential units. Other than Tract 2, no other new residential areas are proposed in this otherwise build out DRI. The proposed 294 units proposed for Tract 2 does not exceed the total allowed 4500 units.
Submitted DO Amendment notes Exhibits A, B, C & D yet Exhibits B (proposed Land Use Equivalency Matrix) & C (Proposed DRI Development Order Amendment) do not appear to have been provided.	There are no proposed revisions to the Exhibits. The Exhibits attached to the current DO are already on file with the county. The applicant has included an additional copy of the currently recorded DO with Exhibits.
Once hearing dates for the rezoning petition have been set, the applicant will need to demonstrate compliance with LDC 304, Public Notice Requirements & 306, Neighborhood Notice.	Noted.

Should you have any questions or need any additional information, please do not hesitate to contact me at (727)376-7300.

Sincerely,

S/

SHELLY MAY JOHNSON, MPA ESQ.

SMJ/

cc: Client